

24STCV05027 24STCV05027

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV05027 Hearing Date: June 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

24STCV05027

ASHLEY

HERSHEY vs LABORATORY CORPORATION OF AMERICA HOLDINGS, et al.

June

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF ASHLEY HERSHEY'S MOTION TO

COMPEL FURTHER DISCOVERY RESPONSES ON PLAINTIFF'S REQUEST FOR PRODUCTION OF

DOCUMENTS (SET TWO) TO DEFENDANT ESOTERIX, INC.; REQUEST FOR MONETARY SANCTIONS

AGAINST ESOTERIX, INC. AND ITS COUNSEL IN THE AMOUNT OF \$4,200.00.

RULING:

The Court orders the
Motion off calendar, considering supplemental responses served.

This ruling is without
prejudice for Plaintiff to file another proper Motion to Compel Further Responses
and Request for Monetary Sanctions, updated to address the most recent
responses.

I.

BACKGROUND

The Court incorporates by
reference the Background section of the Minute Order entered on September 18,
2025.

On June 15, 2026, ASHLEY
HERSHEY (Plaintiff) filed the Motion to Compel Further Document Responses and
Production, from ESOTERIX, INC. (Defendant). Also, Plaintiff requests sanctions
against Defendant and its counsel in the sum of \$4,200.00.

Defendants oppose, essentially
based on arguing that the Motion is moot, after verified, supplemental responses.
Alternatively, Defendants request an Order requiring further meeting and
conferring.

II.

LEGAL STANDARD

A propounding party's
remedy when it deems objections in discovery responses to be without merit is
to move for an order compelling further responses. (Catalina Island Yacht
Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.)

The deadline to give
notice of a motion to compel further discovery responses is calculated as 45
calendar days from service of the verified response or supplemental response,
plus any applicable days' extension after the type of service. (Golf &

Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 137.)

A document response must

consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) Compliance includes all documents or things in the demanded category that are in the “possession, custody, or control” of the responding party, such as from other corporations. (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent’s possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) “Even where a party deems a demand to be objectionable, he [she, or it] still must identify those items which fall into the category of item in the demand to which an objection is being made.” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901, fn.3.)

Courts have discretion to

prohibit discovery if it is unreasonably duplicative or unduly burdensome.

(E.g., Code Civ. Proc., § 2019.030, subd. (a); City of King City v.

Community Bank of Central California (2005) 131 Cal.App.4th 913, 933; Emerson Elec. Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.)

A privacy objection is

not ripe for adjudication before a court where there is no factual basis for ruling, such as respondents’ identifying the documents withheld in a privilege log or elsewhere. (Connecticut Indem. Co. v. Superior Court (2000) 23 Cal.4th 807, 818.)

“[I]f documents

responsive to a document request are withheld on privilege grounds, a privilege

log or some equivalent specification of any asserted privilege objection 'shall' be supplied." (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813.) "[L]egislation amended subdivision (c)(1) of Code of Civil Procedure section 2031.240 to require the preparation of a privilege log 'if necessary' to 'provide sufficient factual information for other parties to evaluate the merits' of a claim of privilege or protected work product." (Bank of Amer., N.A. v. Superior Court (2013) 212 Cal.App.4th 1076, 1098.) Courts may require a specific privilege log as to documents withheld. (Best Prods., Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1188-1189.)

If a party objects to discovery requests, and also provides complete responses to the requests, then nothing is left to address in a motion to compel. (American Federation of State, County & Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269.)

A discovery motion should not be denied automatically based upon the reason that the moving parties failed to meet and confer in good faith. (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 434. But see Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439 [motion must be denied where lack of meet and confer].) A failure to meet and confer in good faith, "may jeopardize the movant's ability to obtain relief for the other side's alleged misuse of the discovery process." (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1298–1299.) "A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion." (Stewart v. Colonial W. Agency (2001) 87 Cal.App.4th 1006, 1016. Accord, Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-1294.)

"If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the "whole picture" of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) Where satisfactory responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (County

of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256.)

III.

ANALYSIS

Plaintiff seeks verifications

as to Plaintiff's Request for Production of Documents (Set Two), and code-compliant responses to numbers 29, 30, 55, 56, 57, 58, 59, 66, 67, 75, and 91. Plaintiff argues that the responses do not include whether production would be allowed in full or part, and state meritless "duplicative" objections.

Defendants make the following points:

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The meeting and conferring was inadequate and instead Plaintiff obtained ex parte relief advancing the hearing date.

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Defendants properly sought discovery extensions before providing substantive responses on June 11, 2026.

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Defendant cured the alleged deficiencies outlined in the Motion by serving further supplemental responses and verifications, on June 23, 2026.

Where respondents served

untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (Sinaiko

Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778 [addressing motion to deem admissions admitted].)

The instant Motion and accompanying Separate Statement are unhelpfully out-of-date, whereas the Court needs Plaintiff to address the most recent responses, if Plaintiff so desires.

IV.

CONCLUSION

The Court orders the Motion off calendar, considering the supplemental responses.

Finally, the Court notes that at any future discovery hearing, it may consider appointing a Discovery Referee, since there have been five discovery motions on calendar in recent months. (Code Civ. Proc., § 639.)